

SENATE No. 1210

The Commonwealth of Massachusetts

PRESENTED BY:

Michael O. Moore

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act concerning the disclosure of the home address and home contact information of certain public safety officials.

PETITION OF:

NAME:

Michael O. Moore

DISTRICT/ADDRESS:

Second Worcester

SENATE No. 1210

By Mr. Moore, a petition (accompanied by bill, Senate, No. 1210) of Michael O. Moore for legislation relative to the disclosure of the home address and home contact information of certain public safety officials. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act concerning the disclosure of the home address and home contact information of certain public safety officials.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. The General Laws are amended by inserting after chapter 93L the following
2 chapter:-

3 CHAPTER 93M.

4 Section 1. Person, business, association prohibited from publishing certain information
5 on the Internet.

6 a. (1) Upon notification pursuant to paragraph (2) of this subsection, and not later than
7 10 business days following receipt thereof, a person, business, or association shall not disclose or
8 re-disclose on the Internet or otherwise make available, the home address or unpublished home
9 telephone number of any covered person, as defined in subsection d. of this section.

10 (2) An authorized person seeking to prohibit the disclosure of the home address or
11 unpublished home telephone number of any covered person consistent with paragraph (1) of this

subsection shall provide written notice to the person from whom they are seeking nondisclosure that they are an authorized person and requesting that the person cease the disclosure of the information and remove the protected information from the Internet or where otherwise made available.

(3) An immediate family member who has provided notice pursuant to paragraph (2) of this subsection and who no longer resides with the judicial officer, prosecutor, or law enforcement officer shall provide notice to that effect to the person, business, or association not later than 30 days from the date on which the immediate family member no longer resided with the judicial officer, prosecutor, or law enforcement officer.

b. A person, business, or association that violates subsection a(1) of this section shall be liable to the aggrieved person, who may bring a civil action in the Superior Court.

c. The court may award:

(1) actual damages, but not less than liquidated damages computed at the rate of \$1,000 for each violation of this section;

(2) punitive damages upon proof of willful or reckless disregard of the law;

(3) reasonable attorney's fees and other litigation costs reasonably incurred; and

(4) any other preliminary and equitable relief as the court determines to be appropriate.

d. For the purposes of this section:

“Authorized person” means a covered person or any of the following persons hereby authorized to submit or revoke a request for the redaction or nondisclosure of a home address on behalf of a covered person:

(1) on behalf of any federal judge, a designee of the United States Marshals Service or of the clerk of any United States District Court or Court of Appeals;

(2) on behalf of any state judge, the clerk of court for the applicable state court;

(3) on behalf of any covered person who is deceased or medically or psychologically incapacitated, a person acting on behalf of the covered person as a designated trustee, as an estate executor, or pursuant to a written power of attorney or other legal instrument; and

(4) on behalf of any immediate family member who is a minor and who is otherwise entitled to address redaction or nondisclosure pursuant to this section, the parent or legal guardian thereof.

“Covered person” means an active, formerly active, or retired judicial officer or law enforcement officer or prosecutor, and any immediate family member residing in the same household as such judicial officer, law enforcement officer, or prosecutor.

“Disclose” shall mean to solicit, sell, manufacture, give, provide, lend, trade, mail, deliver, transfer, post, publish, distribute, circulate, disseminate, present, exhibit, advertise or offer.

“Immediate family member” means a spouse, child, or parent of, or any other family member related by blood or by law to, an active, formerly active, or retired judicial officer or law

50 enforcement officer or prosecutor and who resides in the same household as such judicial officer,
51 prosecutor, or law enforcement officer.

52 “Person” shall not be construed to include in any capacity the custodian of a government
53 record.

54 e. Nothing herein shall be construed to impose liability on the news media for failure to
55 remove information from previously printed newspapers. As used in this subsection, “news
56 media” means newspapers, magazines, press associations, news agencies, wire services, or other
57 similar printed means of disseminating news to the general public.

58 SECTION 2. Compliance with the provisions of this act shall not be required until one
59 year after the date of enactment, except that a person, business, or association may honor a
60 request for redaction or nondisclosure, or revocation thereof, submitted by an authorized person
61 prior thereto.